SETWEB ENTERPRISES (PVT) LIMITED
versus
MAKUNDE SCHOOL DEVELOPMENT COMMITTEE
and
THE HONOURABLE MAGISTRATE, MATONGO NO.

HIGH COURT OF ZIMBABWE
MANYANGADZE J
HARARE, 22 October 2025 & 9 July 2026

Opposed application

P Mazvuzvu, for the applicant
ET Moyo, for the 1st respondent

MANYANGADZE J:

INTRODUCTION

This is an application for review of the decision made by the second respondent in which he allowed the first respondent's counter- claim to proceed, having struck off the applicant's claim. The relief sought is in the following terms:

> "1. The application for review succeeds.
>
> 2. A part of the decision of the court *a quo* dated the 25th day of March, 2025 (as handed down under case no. CG76/24) wherein trial of the 1st respondent's counter claim was sanctioned, be and is hereby set aside.
>
> 3. In its stead, the part of the decision of the court of origin mentioned in clause 2 of this Order be and is hereby corrected to read,
>
> > "*The plaintiff in re-convention's counter claim as launched under case no. CG76/ 24 be and is hereby also struck off roll, with no order as to costs.*"
>
> 4. Costs of suit on a legal practitioner and client scale."

FACTUAL BACKGROUND

The facts of this matter are brief and largely common cause. The applicant issued summons in the Magistrates Court against Nyahuni Mission School ("Nyahuni"), under Case

No. CG 76/24, for the recovery of a debt in the sum of US$4 121,00 being the value of building materials it supplied to the school.

The second respondent ("the magistrate") upheld Nyahuni's special plea, which was to the effect that Nyahuni was not a legal *persona* and could therefore not be competently sued by the applicant. The result was an order in which the summons matter was struck off the roll.

The first respondent in the instant application, Makunde School Development Committee ("Makunde"), filed a counterclaim against the plaintiff (the applicant herein) for the refund of the sum of US$26 500,00 which it alleged was erroneously paid to the plaintiff. Makunde was not a party to the summons proceedings instituted by the applicant against Nyahuni. After Makunde filed its counterclaim, the magistrate handed down the following decision, on 25 March 2025:

> "Summons of the plaintiff be and are hereby struck off.
> Each party to bear its own costs.
> First defendant to prosecute his (*sic*) counterclaim if he (*sic*) so wishes."

POINT *IN LIMINE*

Makunde raised a point *in limine* to the effect that the application was improperly before the court. The applicant filed an appeal under the guise of an application for review.

Makunde contended that the application was in fact an appeal against the decision of the magistrate dismissing the applicant's preliminary point that the counterclaim was improperly before the court. If the applicant was aggrieved by such decision, it ought to appeal instead of filing an application for review.

In its response to the preliminary point, the applicant averred that s 27 of the High Court Act, in terms of which the application for review was made, allows a litigant to seek a review on the basis of gross irregularity in the proceedings and/or decision in question.

Further to that, the applicant contended that allowing a person or entity who is not a party to the proceedings is a procedural irregularity that warrants an application for review.

Indeed, a review, in most cases, has to do with the manner in which the proceedings in question have been conducted. It impugns the manner in which the decision has been arrived at, not the merits of such decision. A challenge on the merits of the determination is the subject of an appeal.

However, a reading of s 27(1)(c) indicates that the irregularity complained of in a review can be in the *proceedings* and/or the *decision*. The irregularity must be so gross that the proceedings cannot be allowed to stand.

It is also clear that the review application deals with procedural aspects, how a counterclaim is filed and disposed of.

In the circumstances, it is the court's considered view that the application for review has been properly brought before the court. I am therefore unable to uphold the preliminary point, and it is accordingly dismissed.

MERITS

Having thus disposed of the point *in limine*, I must now turn to the merits of the matter.

APPLICANT'S ARGUMENT

The gravamen of the review is that it was grossly irregular for the magistrate to allow the counterclaim made by Makunde, as it was not a party to the main matter i.e. the summons proceedings instituted by the applicant.

Following that, it was grossly irregular to order/direct that Nyahuni proceeds with the counterclaim, after the magistrate had ruled that it was not a legal *persona*. Such a decision was inconsistent with the earlier finding, and was illogical.

MAKUNDE'S ARGUMENT

Makunde insisted that there was nothing irregular in the proceedings. It contended that the counterclaim is a "separate juridical act from the main action", as provided for in Order 9 rule 7 of the Magistrates' Court (Civil) Rules, 2019.

The applicant further contended that a summons is rendered fatally defective by the improper citation of the defendants, as held in the case of *JDM Agro Consult & Marketing (Pvt) Ltd* v *Editor of the Herald Newspaper* 2007 (2) ZLR 71.

I must state that I find this line of argument by Makunde difficult to follow. It is not clear how a counterclaim can validly ensue from proceedings that have been rendered fatally defective by the citation of a wrong defendant.

THE LAW

The matter is centred on the propriety or otherwise of the counterclaim filed by Makunde.

The law is very clear that a counterclaim must involve the correct parties to the matter. In *Stewart Mungofa* v *William Sande and Drusilla Mungofa* HH 29-08, the court held that a defendant cannot claim in reconvention against a person other than the plaintiff in the action. The court rejected an attempt to use a counterclaim to bring in a person who was not properly the plaintiff against whom the re-conventional claim lay.

Although the court was dealing with a situation where the defendant attempted to bring a counterclaim against a person who was not a plaintiff in the matter, the position is the same where a defendant who is not a party to the proceedings brings a counterclaim against the plaintiff. The underlying principle is that the claim in reconvention, just like the claim in convention, must be between the same plaintiff and defendant.

APPLICATION OF THE LAW

In my view, this is a simple and straightforward case.
The parties before the court *a quo* were *Setweb Enterprises (Pvt)* v *Nyahuni Mission School,* CG 76/24, as plaintiff and defendant, respectively.

The entity who brought the counterclaim was Makunde School Development Committee. It was not a party to the above-cited case. It was just imposed onto the proceedings without any application for joinder, bringing with it the counterclaim in question. This constituted a gross procedural irregularity.

To make matters worse, Nyahuni Mission School, which the court had ruled was not a legal *persona*, was then allowed to proceed with the counterclaim. It is baffling that a defendant who is not a legal *persona* for purposes of a claim in convention becomes a legal *persona* for purposes of a claim in reconvention. This decision, flowing as it was from a fundamentally flawed procedure, was patently irregular, if not downright irrational. It is one of those cases where the grave injustice arising therefrom warrants intervention. See *Attorney General* v *Makamba* 2005(2) ZLR 54(S).

DISPOSITION

The proceedings and the resultant decision ought to be set aside. The powers of this court in civil review proceedings are provided for in clear and unambiguous terms in s 28 of the High Court Act [*Chapter 6:07*]. The section reads as follows:

> "On a review of any proceedings or decision other than criminal proceedings, the High Court may, subject to any other law, set aside or correct the proceedings or decision." (underlining added)

The relief sought by the applicant is in accordance with the provisions of the law. As for costs, I take the view that the first respondent has argued its case and lost. Costs will simply follow the cause.

In the result, it is ordered that:

1. The application for review succeeds.
2. A part of the decision of the court *a quo* dated the 25th day of March 2025 (as handed down under Case No. CG76/ 24) wherein trial of the first respondent's counter claim was sanctioned, be and is hereby set aside.
3. In its stead, the part of the decision of the court of origin mentioned in clause 2 of this Order be and is hereby corrected to read:

   "*The plaintiff in reconvention's counter claim as launched under Case No. CG76/ 24 be and is hereby also struck off roll, with no order as to costs*."
4. The first respondent shall bear the applicant's costs.

MANYANGADZE J…….

Hamunakwadi & Nyandoro Law Chambers, applicant's legal practitioners
Mushoriwa Moyo, first respondent's legal practitioners